

Policy Proposal on IT Ethics

Students' Data Privacy and Information Protection in School Information Technologies

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1.2 Executive Summary

The policy that is being presented aims to address the ethical issues faced when it comes to the protection of students' data privacy in school information and learning management systems. That is because technology is now used in gathering, storing, processing, and sharing personal information. The data is collected mainly to support communication and improve academic management, but it can also result in the risks of misuse of data and loss of trust between students and institutions.

The policy being proposed with the title "**Students' Data Privacy and Information Protection in School Information Technologies**" wants to establish clear instructions for the proper management of student data. Its key parts are the minimization of data, transparency, consistency, and accountability. Through proper training and orientation, the expected outcome is to create safer systems for the students, protect their rights, and strengthen privacy regulations compliance. By exploring the issue of data privacy, we, the members of the group, gained deeper understanding of why it is important, which will now be explained in the following sections of the paper.

1.3 Introduction

A. Background and Importance of the Issue

In the digital learning environment of today, there's a significant increase in the reliance on technology. It is not only used for communication but also for the collection, storing, and management of student information. School personnel handle the data of

students everyday, like their names, grades, contact details, and others. Due to having direct access to said records, educators play an important role in protecting the privacy of the learners. However, some teachers may not be given enough training about the proper ways to protect the privacy of the students, even though the people who are part of the community expect them to understand and follow policies related to data privacy (Attai, 2019).

The issues that involve privacy become more serious and complicated because institutions use online platforms, learning management systems, and forums for discussions (Weber, 2013). Though online learning platforms generate data from students to help improve learning experiences, these data also hold confidential information. Because of this, it should be required that researchers and organizations take careful measures when it comes to analyzing student data. A study (Bosch et al., 2020) emphasized the importance of carefully scanning and removing private data from online discussion forums before the information can be used for research purposes.

In the Philippine context, the Republic Act No. 10173, or the Data Privacy Act of 2012, gives the foundation for the protection of personal information in both Public and Private Organizations. In addition, it created the National Privacy Commission, it is responsible for surveillance and it ensures that institutions comply with data privacy requirements (Republic Act No. 10173, 2012).

This shows that the protection of students' data is both a technical and ethical responsibility. If institutions fail to protect the information of students, they may experience problems such as discrimination, stolen identity, or even loss of trust in the

school. Therefore, organizations must make clear policies and guidelines on how to responsibly handle student data inside school information systems.

B. Purpose of the Policy

The purpose of the policy being presented is to establish guidelines for the responsible management of student data inside the school information systems. Additionally, the policy aims to protect the privacy of students, promote accountability among educators and staff, and strengthen trust within the community. These goals will be achieved through proper training, control of access, and securing data management, while seeking to ensure that technology can be used to support students' learning without compromising their rights and safety.

1.4 Research and Literature Review

A. Review of Existing Research

Student Privacy in Educational Institutions

The institutions for higher education collect and analyze data from students to be used and to improve academic performance, and gain the chance of great learning outcomes. However, the data collection raises concerns on privacy because of the contained sensitive and highly confidential information (Prinsloo & Slade, 2014).

Studies show that students are now being more aware and worried about how schools collect and use their private data. Surveys from Gallup and EDUCAUSE showed that more and more students are limiting their trust in institutions that manage

their data. This emphasizes that schools bear the responsibility of protecting the privacy of learners, as some students may still engage themselves in situations where their privacy is put in jeopardy (Prinsloo & Slade, 2014), (Park & Vance, 2021).

Policies on Student Privacy

Republic Act No. 10173, also known as the Data Privacy Act of 2012, is the main legal structure for the protection of personal information in both public and private sectors. With the creation of the National Privacy Commission, it monitors and ensures that proper practices on data protection are followed. However, studies show that compliance with the act can be quite difficult, considering the challenges like limited time and resources and attitude toward the decision (Pitogo, 2019).

Privacy Protection in School Learning Systems

The growth and evolution of technology has made privacy protection concerning because personal information is now being gathered and transmitted across online platforms. Data Privacy Laws like the EU GDPR and other regulations were founded for the protection of individuals against unauthorized access and misuse of their private information. These policies also emphasize the legal responsibilities of institutions that handle personal data. In school information and learning systems, privacy protection is most relevant because the said systems contain confidential student records. Thus, schools must have strong policies to ensure that they can protect students' rights and avoid issues involving misuse of personal information (Bakare et al., 2024).

B. Ethical Frameworks

The proposed policy should be guided by existing and important laws, ethical frameworks, and standards set in the industry that help protect personal information. The main legal basis in the Philippine setting is the Data Privacy Act of 2012, requiring organizations to collect and use data in a secure manner (Republic Act No. 10173, 2012).

This is followed and supported by the National Privacy Commission, especially transparency and accountability that require institutions to have a clear statement of the reason for the collection of information, promising to only use it for rightful and valid reason, while limiting the amount of data to be collected (National Privacy Commission, 2017).

Additionally, the policy should be guided by known privacy standards like the NIST Privacy Framework that discusses privacy risk management and protection of data throughout the lifecycle of school information systems (National Institute of Standards and Technology, 2020).

In the sense of ethics, the policy being presented can be supported by right-based ethics that recognizes that students have the right to data privacy. Since schools gather confidential records, they must recognize and respect the privacy of the learners (Rubel & Jones, 2016). For additional support, we have deontological ethics, stating that schools, educators, and staff have to protect student records because those are entrusted to them (Dilbar, 2024).

From a utilitarian perspective, the protection of student data will positively impact the entire institution by eliminating risks that would have compromised the students' rights (Regan & Jesse, 2019). Studies show that student data can significantly improve learning, but if not handled correctly, it can also create problems related to student safety (Hoel & Chen, 2018), (Liu et al., 2023).

1.5 Policy Proposal

A. Policy Guidelines

The proposed policy will be called the **Students' Data Privacy and Information Protection in School Information Technologies**. The main goal of the policy is to ensure that student information will be legally collected, used, and shared. It also aims to protect learners from the violations of privacy, illegal access, improper use of personal data, and many other risks.

The scope will cover all student data being managed by the school, including student name, their ID number, address, contact details, grades, and other data involved and needed for their academic journey. The policy will apply to administrators of the school, educators, staff, personnel, developers of information and learning management systems. Since learning institutions handle and manage personal information of students, they must ensure that their data are secure (Republic Act No. 10173, 2012), (National Privacy Commission, 2017).

First, the school shall apply data minimization techniques. The data to be collected should only be those that are necessary for their academic journey. The

reason for the collection of unnecessary and excessive personal information must be explained by the school, following the principles of legitimate purposes that require institutions to collect only the data needed for certain and rightful goals (National Privacy Commission, 2017), (National Institute of Standards and Technology, 2020).

Secondly, the school shall practice transparency and ask for consent. Students, parents, or guardians must be told what type of data will be collected, in what ways they will be used, who will have access to it, and how long it will stay in their system. Transparency will help learners understand that their privacy and rights are being protected (Rubel & Jones, 2016).

Third, the school shall have the decision of implementing role-based access control. For example, teachers should only access those records that are relevant and are related to their class. Registrar staff will access enrollment and academic records, and cashiers should only have access to payment-related data. Access control supports accountability while improving confidentiality and integrity (National Institute of Standards and Technology, 2020).

Fourth, the data of the students must be securely stored. The records should be protected by having a secured database, requiring strong passwords, including access logs, and encryption if needed. Implementing these safeguards reduce the risk of unauthorized access to confidential information (Republic Act No. 10173, 2012), (National Institute of Standards and Technology, 2020) as student data must remain private and shall not be shared in public (Rubel & Jones, 2016), (Regan & Jesse, 2019).

Finally, any suspicious activities or accidents shall be reported as soon as possible.

B. Implementation Plan

The policy implementation will begin with the approval of the school administrator. Next, the policy should be documented and the school shall conduct orientation for the new policy. The orientation will include the rights of students to their information, system user guidelines, and responsibilities of educators (Republic Act No. 10173, 2012).

The institution should also assign an officer that will handle data protection. Ensuring that the implementation of the privacy will be monitored. Training the educators and staff is also necessary to make sure that they are aware of their responsibilities. Teachers need the knowledge and awareness to be prepared for the management of students data (Torres-Hernández, 2023).

Monitoring will be done through audits and reviews that will be done regularly. System logs will be reviewed to identify unusual or unauthorized access as well as possible misuse of data.

Finally, enforcement will include clear punishments for anyone who violates the policy. In case of data breaches, the school shall have backup records and immediately inform affected individuals, and take proper action to prevent it from happening again (National Privacy Commission, 2017).

C. Expected Outcomes

The expected result of this policy is to provide a more responsible information and learning management systems for institutions, where students are ensured that their data is protected from illegal access or unauthorized exposure to the public. With the requirements for minimization of data, asking for consent, and the concept of confidentiality, the organization can protect students from risks related to data misuse (National Institute of Standards and Technology, 2020).

In addition, the policy aims to make improvements when it comes to trust between academic institutions, students, and their parents. When students feel that their personal data is managed right, there is a higher chance that their trust will increase significantly (Floridi & Taddeo, 2016).

Finally, the expected output if the policy is implemented right, the learning institutions involved will improve their compliance with privacy laws and standards. It will help the school follow what is stated in the Data Privacy Act of 2012 (Republic Act No. 10173, 2012).

Overall, it will help ensure that the systems used in school will effectively improve student performance without compromising their privacy and safety (Floridi & Taddeo, 2016).

1.6 Justification of Policy

A. Ethical and Legal Justification

The proposed policy is ethically justified because there is a need for protection of student data. The said data contains confidential information that should be protected at all costs. Once students hand over their personal information, it means that they trust that the institutions will use it with consideration to their rights.

If ever the school shows behavior related to violations of students privacy, the learners will lose trust. Therefore, the protection is both a technical and ethical responsibility (Floridi & Taddeo, 2016). Looking through a rights-based ethical perspective, students are entitled to the privacy of their data and to the information of how their data will be used. That is why the policy supports transparency and accountability (Rubel & Jones, 2016).

In the context of deontological ethics, institutions have a duty of protecting records entrusted to them by the students. Even if maintaining security requires time and effort, proper practices should still be applied. Educators have a duty to keep students' data confidential (Floridi & Taddeo, 2016).

From a utilitarian perspective, the policy benefits the whole school institutions. Protecting the data of the students prevent disaster and improve trust. The benefit that it will provide is greater than the inconvenience of handling rules (Floridi & Taddeo, 2016).

Legally, the policy is backed up by the Data Privacy Act of 2012, the main legal structure for the protection of personal information in both public and private sectors. With the creation of the National Privacy Commission, it monitors and ensures that proper practices on data protection are followed. However, studies show that

compliance with the act can be quite difficult, considering the challenges like limited time and resources and attitude toward the decision (Pitogo, 2019)

B. Challenges and Considerations

The possible challenge considered in implementing the policy is the lack of awareness among involved individuals. Some may not fully comprehend how important data privacy and its protection is. They might just casually share student data without knowing that those data are not actually supposed to be shared in public. To provide a solution, the school should implement regular orientation and training to spread awareness on unacceptable data management practices (Torres-Hernández, 2023).

The second challenge is limited time and resources, some schools may not be able to use advanced tools for cybersecurity or enough personnel. However, the institution may start with simple but effective security measures like putting strong passwords, backups, and regular audits (Pitogo & Ching, 2018).

Next is the possible resistance to change. Some clients and individuals involved may find the proposed policy inconvenient because it is not what they are used to. As a solution, they should be informed why this step is necessary. In short, strong communication is required to support users in understanding that privacy protection is part of being responsible data handlers (Pitogo & Ching, 2018).

The final challenge that might be faced is compliance with surveillance and monitoring. Even with the policy, there are still individuals who might refuse to participate. Thus, the school must allocate responsible personnel for the job. In general,

these problems can be assessed through proper training, monitoring, and clear communication (Pitogo & Ching, 2018).

1.7 Conclusion

The proposed policy clearly shows why there is a need for the establishment of student data protection. Student information becomes more exposed to the public platforms as days go by, and increasing the risk of unauthorized access, and misuse. To address these issues, the "Students' Data Privacy and Information Protection in School Information Technologies" provides guidelines on role-based access control, and this is to ensure that data will be collected and used properly.

It is now emphasized that individuals involved in data management should be knowledgeable and fully aware of privacy protection before they are allowed to do such jobs, as it is serious matter that involves confidentiality, integrity, and accountability. The protection of students' privacy should come first, not the convenience of those who handle their data. Finally, organizations should not only aim for the improvement of student performance, but they should also consider how they would properly protect the students' dignity.

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